CIRCUIT COURT
OF TALBOT COUNTY
EASTON, MARYLAND
2008 AUG 22 PM 3 16

S2i CORPORATION f/k/a Beckett Brown International, Inc. P.O. Box 180 Easton, Maryland 21601	*	
and	*	IN THE
JOHN C. DODD, III 28198 Oaklands Road Easton, Maryland 21601	*	CIRCUIT COURT FOR
Plaintiffs	*	TALBOT COUNTY
v.	*	MARYLAND
SEMMES, BOWEN & SEMMES 250 West Pratt Street Baltimore, Maryland 21201	*	Case No. ____________
Defendants	*	

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COMPLAINT

Plaintiffs, S2i Corporation and John C. Dodd, III, file this complaint against Semmes, Bowen & Semmes.

PARTIES

1. Plaintiff John C. Dodd, III ("Dodd"), is an individual resident of the State of Maryland. At all times relevant to this complaint and at the present time, Dodd was and is a shareholder and Director of S2i Corporation ("S2i").

2. S2i is a corporation duly incorporated under the laws of Maryland. The Company was formerly known as Beckett Brown International, Inc. ("BBI").

3. Defendant Semmes, Bowen & Semmes ("Semmes") represented Dodd and S2i from early 2001 thru late 2005.

JURISDICTION

4. The Court has subject matter jurisdiction over this suit pursuant to Md. Code, Cts. & Jud. Proc. Art. §1-501 and the amount in question is greater than $30,000.

5. This Court has jurisdiction over the Defendants by virtue of Md. Code, Cts. & Jud. Proc. Art. §6-102(a) because all Defendants are domiciled in, incorporated in, or maintain principal places of business in the State of Maryland.

VENUE

6. Venue is proper in this Court pursuant to Md. Code, Cts. & Jud. Proc. Art. § 6-201(b) because the trial was held in Talbot County Circuit Court in August 2005.

FACTS COMMON TO ALL COUNTS

7. In late 1994, Richard Beckett ("Beckett"), Paul Rakowski ("Rakowski"), and Joseph Masonis ("Masonis") approached Dodd and asked him to provide financing for a new entity to be called Beckett Brown International, Inc.

8. Dodd felt fairly comfortable with Rakowski's and Masonis' background and credentials because they both came from the United States Secret Service. Dodd, his lawyer and his accountant were not comfortable with Beckett because they were unable to learn anything about his past.

9. During a meeting with Dodd, his accountant, Rakowski and Masonis, Dodd and his accountant stated they were going to require an extensive background check be conducted on Beckett before Dodd moved forward. Rakowski responded that he had already performed an extremely thorough background check on Beckett in ways others could not because Rakowski had retired as Regional Supervisor of the Financial Crimes Division of Secret Service. Rakowski

reported that Beckett was "solid as a rock", "clean as a whistle" and a superb business man.

10. Rakowski also stated that if Dodd did not immediately agree to fund BBI, the Company would lose two major jobs that were about to occur, providing protection for the Steve Forbes presidential primary campaign and a big security job for CSX Railroad.

11. Dodd relied totally on Rakowski's alleged "special" background check of Beckett, and Rakowski's alleged close friendship with Steve Forbes, who he said he met when both were in Army National Guard Basic Training. Rakowski said he stood up for Forbes when other recruits were picking on Forbes for being a nerd. Dodd agreed to finance BBI, and the Company was founded and chartered in Easton on August 16, 1995. The Forbes and CSX jobs never came to fruition.

12. After Beckett resigned exactly four years later on August 16, 1999, Dodd learned that Rakowski had lied about every aspect of his "special" background check. Beckett had written off a million dollars in personal bankruptcies, had numerous federal and state tax liens, civil judgements, prior business failures and other credit blemishes, in his past.

13. Dodd casually asked Treasurer Rakowski and President Beckett on August 12, 1999, if all the expenses had been matched up with the revenues in a very impressive July 1999, financial statement. Rakowski was mute and Beckett became very defensive and stormed out of the meeting. Beckett resigned the following Monday.

14. On August 16, 1999, minutes after learning of Beckett's resignation, Dodd drove to the BBI headquarters in Severna Park, and requested an outside audit be conducted immediately. Dodd was outvoted 2-1 by Rakowski and his chief lieutenant Tim Ward. Both Rakowski and Ward said Beckett's departure was a good thing and they would conduct their own

investigation into the financial statements.

15. A year later, with Rakowski no longer on the Board of Directors and Brad Andrew now a new board member, an audit was voted on and approved.

16. The independent auditor, Pat Hantske, and a newly hired company accountant, Lisa Andrew, quickly began discovering wrongdoings on a massive scale. Fraudulent invoices, bogus expenses, defrauding the Talbot Bank Business Manager Program, cooking the books and other illegal business practices had occurred on such a large scale that the auditor stated there was fraud in his audit report. Cleaveland Miller, then Semmes Chairman, told Dodd on March 12, 2001, that fraud is almost never mentioned in audit reports.

17. Beginning on August 31, 1999, Richard Beckett started making numerous allegations to Dodd that BBI personnel were committing crimes including breaking and entering, stealing documents, electronically bugging meetings, wiretapping phone calls, submitting false expense reports and other illegal activities. Beckett stated he had the proof of those crimes. Beckett also threatened to turn Dodd in to the authorities, now that Dodd had been informed of those crimes. Beckett was demanding money and releases from liability. Dodd documented a number of these blackmail attempts. Semmes' attorney, James Johnson, refused to ask Beckett any questions about those allegations at deposition.

18. On April 19, 2000, Beckett left Dodd a phone message that Rakowski and Ward had received large sums of money for fraudulent expenses. Beckett stated that he was going to turn Rakowski and Ward in to the IRS if the company submitted a W-2 for him. James Johnson refused to introduce a recording of that message at trial. The Semmes' lead attorneys prior to Johnson, had told Dodd that the phone message was an incredible piece of evidence and to take

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extreme measures to protect that recording.

19. Prior to Semmes representation of S2i and Dodd, independent attorneys Joe Devlin and George Lantzas were hired by S2i to guide the company through the audit process. Because of strong indications that the law firm that was then representing BBI/S2i, (Hillman, Brown and Darrow) may have committed malpractice, and because of the complexity of the case, and other issues of possible criminal charges, Devlin and Lantzas recommended S2i and Dodd seek counsel outside of Anne Arundel County. They recommended a large law firm in Baltimore, Semmes, Bowen & Semmes.

20. Devlin, Lantzas, and at least some of the many lead attorneys at Semmes during this case, thought Beckett should be named as a Defendant. Dodd did everything he could to make that happen. James Johnson absolutely refused to name Beckett as a Defendant after Dodd had already been billed a large sum of money by Semmes. Johnson stated that the Plaintiffs would have to find another law firm if they insisted on Beckett being named. At trial, Judge Beck, in front of the jury, absolutely castigated Dodd for not naming Beckett in the suit. The Defendants time after time blamed wrongdoings on Beckett. There was no appearance of Beckett at trial, as a witness, or in any other way.

21. Devlin, Lantzas and at least some of the many lead attorneys at Semmes thought Hillman, Brown and Darrow should be named as a Defendant. Johnson refused to even discuss that matter.

22. Initially, Plaintiffs had been led to believe Cleaveland Miller was their lead attorney. Later, Mark Grimes was named lead attorney. When Grimes suddenly left Semmes, no one at Semmes would give Dodd an explanation. Upon further questioning by Dodd, Semmes

stated that Grimes had been caught operating his own law practice outside of his practice for Semmes, Bowen & Semmes. Grimes has since stated that was false. From the moment Grimes left, Semmes never got back up to speed. After Grimes, lead attorneys Ken Knuckey and Matt Weir each left Semmes, the Plaintiffs were assured that their departures were a good thing because their replacements were better lawyers and more qualified to handle the Plaintiffs' case. Later, before the August 2005 trial, Jim Johnson told Dodd that he was being nominated for an appellate judgeship and that he might be leaving Semmes. That did not come to fruition and Johnson remained on the case.

23. Soon after Mark Grimes left Semmes, Plaintiffs were asked over and over and over again to provide the same information and documentation and do the same leg work for Semmes every time lead attorneys changed. This dysfunctional collecting of information caused things to be totally out of control leading up to the trial. One of the Plaintiffs' key witnesses was so concerned about Semmes lack of preparedness to go to trial that he refused to talk to Semmes. No deposition was ever taken of Talbot Bank and no one from Talbot Bank testified at trial. Defrauding of the Talbot Bank Business Manager Program was supposed to be one of the four major dimensions of the trial. Much of the evidence of wrongdoing was never seen by the jury including more than $138,000 lost by Rakowski's son that Beckett had put in writing was a subsidy, 64 instances of Rakowski "double-dipping" on expenses, Ward threatening a process server, and Ward's brother-in-law Eric Pikus admitting to wiretapping in deposition. When the Defendants in the underlying case tried to show that Dodd was running the company by introducing evidence of only half a dozen meetings between Beckett and Dodd, Semmes did not refute this with the evidence that Dodd had provided them of Rakowski meeting with Beckett

more than 300 times. In a letter dated July 8, 2003, Semmes told the Defendants' lawyers that they were "overwhelmed by the departure" of two lead attorneys. Semmes never told this to Dodd.

24. At trial, James Johnson refused to introduce evidence of Rakowski fleecing the company for more than 500 meals. Thousands of hours were spent painstakingly going through work logs, expense sheets, receipts, and company records to compile that information. The reason Johnson gave for not showing this evidence to the jury was that American Joe Miedusiewski, Semmes Public Affairs Group Director, was at the most expensive company meal as well as many of the other Rakowski meals. It is now known that Rakowski and American Joe were childhood friends and classmates.

25. Six months before trial, the Plaintiffs discovered a box of documents stolen from the Bank of Glen Burnie by BBI personnel. Everything from the bank's "Daily Statement of Condition" to security procedures and internal memos had been lifted to aid First Mariner Bank in a hostile takeover attempt of the Bank of Glen Burnie. The Plaintiffs immediately notified Jim Johnson about this amazing find and the fact that social security numbers and other personal information of the Talbot County residents had been stolen. Johnson said that should be extremely helpful in infuriating the local jury and turn them against the Defendants. This evidence, however, was never introduced at trial.

26. Other "victims" of BBI espionage theft operations were soon discovered, including Children's Hospital of Boston, Mars Candy, Whetstone Candy, lawyers representing EDC victims in Louisiana, D.I.S.C.U.S. (Distilled Spirits Council US), Greenpeace and many others. Semmes was notified about each victim discovered. Despite charging the Plaintiffs

hundreds of thousands of dollars to "review documents", neither Semmes nor any of its hired "experts" informed Dodd about finding any stolen trade secrets, proprietary information, evidence of bugged meetings, wiretapped phone calls, hacking and breaking into computers, and planting undercover moles, amongst other things.

27. At trial, despite earlier statements by Semmes to the contrary, not one word was mentioned about any of this nor was one piece of evidence introduced. In response to Plaintiffs' questions as to what happened, James Johnson replied "this is a civil trial and that is a criminal matter". To add insult to injury, the brother-in-law of the senior law partner representing three of the Defendants was responsible for stealing many of the Bank of Glen Burnie and other documents while employed by BBI. No mention of this was made by Semmes in their efforts to have the law firm disqualified earlier in the case. After the trial, it was discovered that Ed Hale of First Mariner Bank, the attacker in the Bank of Glen Burnie takeover attempt, was a former client of Semmes.

28. The credibility of the key McLean, Koehler, Sparks & Hammond (MKS&H), witness Robert Garvey ("Garvey") was totally destroyed when Garvey presented a chart to the jury that contained an $800,000 (eight hundred thousand dollar) mistake. Despite being given plenty of time by the court to correct this mistake and/or explain the error, Garvey could not do so. The Defendant's lawyer ripped Garvey apart on that blunder. Billing records indicate Semmes was intimately involved in preparing and reviewing the charts used by Garvey and no one at Semmes caught the mistake. Garvey's expert report was fraudulent, in that it described a memorandum from Pikus to Ward that did not exist. MKS&H was paid more than $400,000 (four hundred thousand dollars).

29. Immediately after the Garvey debacle, the so-called "Management Expert Witness", John Collard, ("Collard"), took the stand. Johnson had told the Plaintiffs that Collard was just what the Company needed to explain to the jury, in language they could understand, exactly what each of the Defendants had done wrong from a Management point of view. Johnson said Collard was very expensive -at $350.00/hr- but well worth it. According to Collard's own notes on July 26, 2005, just a few days before the trial began on August 1, 2005, Semmes attorney, Guido Porcarelli, "said that he didn't understand the way Collard writes and communicates -it's like fitting a square peg into a round hole. Porcarelli didn't understand Collard's report done in August 2003, almost two years earlier". Collard's expert report was fraudulent. He stated in that report that he interviewed prior employees of BBI/S2i. He did not interview any prior employees. Collard told the Plaintiffs at their very first meeting he had been a Management Expert Witness on prior occasions. At trial, Plaintiffs learned Collard had never been certified in any court in the land and had never testified as a Management Expert Witness. The Judge threw Collard off the witness stand, which Collard now blames on Semmes. When the jury was brought back into the courtroom, Collard was gone and they were given no explanation of what had happened. Collard billed Dodd almost $200,000 (two hundred thousand dollars).

30. Immediately after the jury ruled against the Plaintiffs, Dodd told Johnson he was going to contact the FBI and the press about violations of the Economic Espionage Act, and additional crimes perpetrated by the Defendants and others. Johnson, in very strong language, instructed Dodd not to contact anyone about any of this or Dodd would suffer severe consequences. Johnson would not elaborate on his statement, but then said Dodd needed to

move on with his life and make believe none of those crimes ever happened. Dodd stated there was no way in hell he was going to follow Johnson's instructions. Johnson followed up this conversation with a fax a few days later stating it was his "recommendation that neither S2i nor John personally bring the complaints to the press or to the criminal authorities. I see no possible benefit to the Company nor to John, and I see great potential risks".

31. At the time, Plaintiffs viewed this as an attempt to cover-up a number of very serious crimes. Today, in light of what has since transpired, coupled with skyrocketing investigations and press coverage, Plaintiffs view the actions of Semmes, Bowen & Semmes to be part of a massive conspiracy to cover-up a ginormous international scandal, along with attempting to coerce the Plaintiffs into committing Misprision of Felony.

32. Plaintiffs have suffered extremely severe actual damages as a result of legal malpractice by Semmes, Bowen & Semmes.

COUNT I

BREACH OF AGREEMENT

33. Plaintiffs incorporate by reference paragraphs 1 through 32 of the Complaint in this Count I, as if fully restated herein.

34. A February 16, 2001, letter from Defendant and a March 12, 2001, followup meeting laid out the following:

a. Cleaveland D. Miller would be the lead attorney for the Plaintiffs;

b. Total costs of the law suit were estimated to be around $100,000;

c. Time until trial was estimated to be around one year;

d. Probability of success was estimated at greater than 50% against the Officers and higher than that against the Accountant;

e. Semmes, Bowen and Semmes did not have any conflicts of interest;

f. Semmes, Bowen and Semmes would provide high quality legal counsel; and

g. Richard Beckett would be one of the named Defendants.

35. In reality, what actually happened is:

a. Plaintiffs were assigned five different lead attorneys, and the fifth, James Johnson, as mentioned before, wanted very badly to be gone before trial;

b. Costs were close to 20 times the estimate;

c. It took four and a half times longer than estimated to get to trial;

d. Semmes had two major conflicts of interest;

e. Semmes refused to name Beckett as a Defendant;

f. Semmes attorneys were totally unprepared to go to trial;

g. Semmes allowed Collard to be brought on as an Expert under false pretenses, did not inform Plaintiffs of this fraud in the inducement, or Collard's fraudulent expert report claim of interviewing prior employees;

h. Semmes did not find and correct Garvey's $800,000 (eight hundred thousand dollar) mistake shown to the jury and did nothing about the Pikus to Ward memo in his fraudulent expert report which, in reality, did not exist; and

i. Semmes breached the Agreement in numerous other ways, including covering up the fact that BBI was, in reality, a criminal enterprise.

36. Semmes, Bowen & Semmes, after the trial was over, instructed Plaintiffs to commit Misprision of Felony. These breaches caused huge economic loss and irreparable harm

to Plaintiffs.

WHEREFORE, Plaintiffs, S2i Corporation and Dodd, respectfully request that upon trial of this case, this Court enter judgment against Defendant Semmes, Bowen & Semmes for the actual damages, in an amount to be proven at trial, caused by Breach of Agreement. Plaintiffs further request that they be awarded punitive damages and their costs incurred in prosecuting this action and such other and further relief to which they may be entitled.

COUNT II

CIVIL CONSPIRACY

37. Plaintiffs incorporate by reference paragraphs 1 through 36 of the Complaint in this Count II, as if fully restated herein.

38. Without the knowledge, consent or approval of Plaintiffs, Defendant, by agreement or understanding, knowingly and willfully conspired with Strategic Management Partners, Inc., and McLean, Koehler, Sparks, and Hammond to conceal all violations of the Economic Espionage Act and all other illegal espionage activities committed by BBI/S2i personnel.

39. As a result of the Defendant's conspiracy, Plaintiffs have suffered severe economic and other injury resulting from extraordinarily powerful evidence not being introduced and, instead, being covered up at trial.

WHEREFORE, Plaintiffs, S2i Corporation and Dodd respectfully request that upon trial of this case, this Court enter judgment against Defendant Semmes, Bowen & Semmes for the actual damages, in an amount to be proven at trial, caused by this Civil Conspiracy. Plaintiffs further request that they be awarded punitive damages and their costs incurred in prosecuting this action, and such other and further relief to which they may be entitled.

COUNT III

BREACH OF FIDUCIARY DUTY

40. Plaintiffs incorporate by reference paragraphs 1 through 39 of the Complaint in this Count III, as if fully restated herein.

41. By placing their own best interests ahead of the Plaintiffs, Semmes has committed malpractice by breaching their fiduciary duty.

42. As soon as Semmes realized that the Bank of Glen Burnie had been victimized by BBI, Semmes should have informed Dodd of a conflict of interest on their part, related to their earlier representation of Ed Hale. Semmes should have immediately notified the FBI and done whatever was necessary to bring about the best possible outcome for the Plaintiffs. Instead, Semmes initially covered up the bank thefts of trade secrets and proprietary information by failing to inform Plaintiffs of any of this. After Plaintiffs discovered those crimes on their own, Semmes defrauded the Plaintiffs by stating that evidence would be introduced at trial. It was not introduced at trial. Plaintiffs were later instructed to commit Misprision of Felony by covering up those crimes after the trial.

43. Likewise, as soon as Semmes realized that BBI, Paul Rakowski and American Joe Miedusiewski of Semmes were so intertwined, Plaintiffs should have been informed there was a major conflict of interest, Semmes should have recused themselves and fully indemnified the Plaintiffs. As a matter of fact, during the Rakowski meals compilations, James Johnson was asked several times by the Plaintiffs if there might be some kind of conflict issues because American Joe's name kept showing up. Each time Johnson very firmly replied that there were

absolutely no conflict problems. That certainly turned out to be false and Semmes again breached their fiduciary duties to the Plaintiffs. BBI mastermind Defendant Rakowski skated free after fleecing the Plaintiffs for more than 500 free meals. Richard Beckett skated free from any wrongdoings by not being named as a Defendant. This and numerous other utter failures in introducing evidence on the part of Semmes allowed Rakowski and the other Defendants to completely fool the jury about their true character and actions. BBI/S2i was a gigantic cesspool of stealing, lying and cheating. Semmes totally botched any chance that the jury would learn the truth because Semmes was much more interested in protecting their own best interests. Their actions have caused a huge economic loss to S2i and Dodd, as well as irreparable emotional harm to Dodd.

WHEREFORE, Plaintiffs, S2i Corporation and Dodd, respectfully request that upon trial of this case, this Court enter judgment against Defendant Semmes, Bowen & Semmes for the actual damages, in an amount to be proven at trial, caused by Breach of Fiduciary Duty. Plaintiffs further request that they be awarded punitive damages and their costs incurred in prosecuting this action and such other and further relief to which they may be entitled.

COUNT IV

FRAUD

44. Plaintiffs incorporate by reference paragraphs 1 through 43 of the Complaint in this Count IV, as if fully restated herein.

45. Defendant Semmes, Bowen & Semmes made numerous misrepresentations of material facts to S2i Corporation and to Dodd individually. Plaintiffs were entitled to rely upon the representations of the Defendants who created a relationship of trust with the Plaintiffs.

46. The misrepresentations to Plaintiffs included, but were not limited to, the following:

a. A February 16, 2001, letter from Semmes, Bowen & Semmes Chairman, Cleaveland Miller to Dodd ended with "again, I thank you for entrusting your work to us, and I will do my best to provide you with prompt, high quality legal counsel. I look forward to working with you". Counsel was not prompt and the work was not of high quality. It was, however, a game of musical chairs: The February 16, 2001, letter and a follow up meeting on March 12, 2001, indicated Miller was the lead attorney. A few months later, Plaintiffs were informed Mark Grimes was their new lead attorney because he was a former cop, a rising star at Semmes, and "perfect for this case". Grimes took a personal interest in the case because he became very upset when "former law enforcement beat the system", as he described it. Grimes asked many, many questions, requested many, many documents and traveled to Easton a number of times. After about one and a half years on the case and one month after the lawsuit was filed, Grimes left Dodd a very upbeat phone message on September 9, 2002, that things were going very well. A month later, on October 4, 2002, Grimes told Dodd he had just met with the Forensic Experts Investigative Team from MKS&H and everyone involved in the case was feeling "a lot more confident". The Plaintiffs continued to receive very positive updates from Grimes, until early 2003, when James Johnson notified Dodd that Grimes was no longer with Semmes. Johnson initially refused to tell Dodd what had happened, but later told Dodd that Grimes had set up a law firm on the side, stealing their clients and Semmes had just become aware of that. In response to Dodd's deep concerns how Grimes departure would affect the Plaintiffs' case, Johnson told Dodd not to worry because Ken Knuckey was the new lead attorney and he was brilliant, smarter and much more experienced than Grimes. Before Knuckey got anywhere close to reaching the level of understanding about the case Grimes had, Knuckey was gone. In yet another call, Johnson tried to allay more of Dodd's concerns. Johnson said Knuckey leaving was a good thing for the Plaintiffs because they would now get the guy they should have had from the beginning, lawyer/CPA, Matt Weir. With all the issues of cooked books, defrauding the Talbot Bank Business Manager Program and other irregular business practices, a lawyer/accountant combination was "ideal for the case", Johnson stated. When Weir later left, Johnson said he was going to turn that departure into a positive for the Plaintiffs by coming into the case immediately himself as the new lead attorney, rather than coming on later in his normal role as litigator. And Johnson, being a senior partner in the law firm, would be there for the duration. Some time later, Johnson requested Dodd meet him in Annapolis for "lunch on the law firm". Johnson told Dodd there was a high probability that he would be leaving Semmes to become an appellate judge. But not to worry-Guido Porcarelli, who Johnson said was nicknamed "The Miracle Worker" at Semmes, would be fully up to speed by trial time, and probably do a better job than Johnson would have done. As it turned out, Johnson did not get the judgeship and appeared very depressed from that point forward. The constant churning of lead attorneys did not make things better as Johnson has promised. Instead confusion, chaos, misunderstanding, lost documentation and repetitive billings for the same exact work already done multiplied with each departing attorney. Once Mark Grimes left, everything went south. The Plaintiffs paid not only an extraordinary price in money and time, but they also suffered an extraordinary amount of anguish;

b. James Johnson told the Plaintiffs a Management Expert Witness was needed to testify at trial, to speak in language the jury would understand, and to detail what each individual Defendant did wrong from a Management prospective. Johnson stated the best person out there was John Collard of Strategic Management Partners, Inc. ("SMP"). Johnson failed to tell the Plaintiffs that Collard had never been certified as an Expert in any court in the land, nor had he ever testified in any court in the land. Semmes did not utter a word to counter Collard's claims to Plaintiffs that he had performed Expert Witness duties at the initial meeting, held at Semmes with multiple Semmes lawyers present. Semmes told Plaintiffs they carefully reviewed Collard's Expert Report. Collard's Expert Report was not only horribly written, it was fraudulent by stating Collard had interviewed prior employees of BBI/S2i. Those interviews never took place and Collard was hammered on that point by the Defendants' attorneys at deposition. Semmes had instructed Plaintiffs not to contact any of the Experts because of independence issues. Plaintiffs relied solely upon Semmes to ensure everything Collard did was up to snuff. Semmes failed miserably. Collard's own notes,

26-Jul-05 *@REM = @Semmes, Baltimore, MD = Porcarelli said that he didn't understand the way Collard writes and communicates, its like fitting a square peg into a round hole = Porcarelli didn't understand Collard's report done in Aug 2003, almost 2 years earlier = Collard asked why if he didn't like the report or the way it was communicated didn't he request that it be changed, amended? Collard expressed to Porcarelli This is a fine time [on the eve of Trial] to tell the Expert that he can't communicate; particularly after Collard just reviewed 5,000 pages of deposition testimony in compressed timeframe, at his request.*

Plaintiffs did not learn about any of this until after the trial. And it was not until the night before the trial began that James Johnson stated Collard was leaving himself wide open to a lawsuit by referring to himself on paper, and orally, as "The Doctor". The Plaintiffs paid almost $138,000 to "The Doctor" and at $350.00/hr "The Doctor" did not deliver at trial when he was supposed to. The Plaintiffs were left with a huge void at trial because Semmes had no back-up plan to link each individual Defendant with specific wrongdoing which Collard was supposed to do. In a separate lawsuit involving Collard and Dodd, Collard now blames Semmes for being thrown off the witness stand. This blunder did irreparable harm to the Plaintiffs' case at trial;

c. Semmes also told the Plaintiffs that they carefully reviewed Robert Garvey's Expert Report. Semmes failed to tell the Plaintiffs that report was fraudulent. It stated "in a memorandum from Pikus to Ward, Pikus admits that he knew of the scheme to submit the fake invoices. He states "approximately $130,000 of the charged back invoices were in violation of the agreement when submitted"". Since the Plaintiffs were instructed by Semmes not to contact the Experts, the Plaintiffs had not seen this memo themselves when Garvey's report was published. Repeated requests by the Plaintiffs to Semmes for a copy of the memo were made, to no avail. After the trail, when the Plaintiffs were going through some of Garvey's notes left behind, it was discovered the memo never existed. There are indications the Defendant's Lawyers in the underlying case knew the memo did not exist, and that information was passed on to the Judge, who refused to admit Garvey's report into evidence. What was admitted into evidence at trial was a Garvey chart that was shown to the jury. That chart contained a gigantic $800,000 mistake that was so glaring the Plaintiffs spotted it in a few seconds. The Defendants certainly did not miss it either and their lawyers tore Garvey to pieces on cross-examination when Garvey had no explanation whatsoever for that incredible mistake. The Plaintiffs were not shown any of Garvey's charts until they were shown to the jury. Had these charts been made available to the Plaintiffs before trial, they certainly would have picked up on that $800,000 mistake. It is totally unfathomable that Semmes and Garvey allowed this fiasco to take place. Semmes' bills show they were intimately involved in the preparation and review of Garvey's charts. Garvey appeared to be totally unfamiliar, even confused, by what was allegedly his own chart. In all likelihood, the charts were not prepared until the last minute, before Garvey was called to testify and it is questionable as to who actually prepared the charts. The cataclysmic failures of both very expensive Experts, hand-picked and supposedly closely monitored by Semmes did irreparable harm to Plaintiffs at trial and continues to cause great damage today with the Collard suit against Dodd and a suit threatened by Garvey against Dodd;

d. In addition to fraudulent statements being made to the Plaintiffs by Semmes, they were informing the Defendants' attorneys all about problems Semmes was having, but failing to pass that information on to the Plaintiffs. While telling the Plaintiffs how wonderful it was to have Matt Weir, the lawyer/CPA as the new lead attorney, James Johnson, on July 8, 2003, wrote to all the Defendants' lawyers the following, "We have been overwhelmed by the departure of the two attorneys who had the principal responsibility for handling this matter: Mark Grimes and Ken Knuckey. We are working to bring other attorneys up to speed so that we can move forward expeditiously". These comments were an open invitation to the Defendants' lawyers to put the pedal to the metal, and that is exactly what happened. The other side jumped all over the Semmes shortcomings right on through until the end of the trial. These actions cost the Plaintiffs huge sums of money, extraordinary amounts of time, inflicted emotional distress and did irreparable harm to the Plaintiffs; and

e. Plaintiffs were defrauded by Semmes, Bowen and Semmes into believing the truth would come out about the pain and suffering Paul Rakowski, Richard Beckett, Tim Ward, Jay Bly, Eric Pikus, Jim Kerr, and others have inflicted, not only on the Plaintiffs, but on many, many others all across the land. Among the victims who were causalities of the actions of BBI/S2i personnel are those injured by one of the biggest chemical spills in United States history, the old and sick in a major nursing home, cancer researchers at Children's Hospital of Boston, American companies, like Mars and Whetstone Candy who were under attack from the foreign giant Nestle, the Bank of Glen Burnie, and its customers and stockholders, and many, many others, including a young female high school science phenom. All of them have been victimized by the BBI/S2i predators. There is no doubt similar activities are going on today, since many of the Defendants are still engaged in security or security-related work. The failure of Semmes, Bowen & Semmes to expose these evils, coupled with their efforts to cover it all up, has resulted in harm and damages to not only the Plaintiffs, but to people all across the globe. Those damages are incalculable. Semmes actions have also allowed the Defendants in the underlying suit to remain in business.

WHEREFORE, Plaintiffs, S2i Corporation and Dodd, respectfully request that upon trial of this case, this Court enter judgment against Defendant Semmes, Bowen & Semmes for the actual damages, in an amount to be proven at trial, caused by Fraud. Plaintiffs further request that they be awarded punitive damages and their costs incurred in prosecuting this action and such other and further relief to which they may be entitled.

REQUEST FOR JURY TRIAL

Plaintiffs respectfully request trial by jury for all matters alleged in this Complaint.

Respectfully submitted,

John C. Dodd, III

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(410) 822-6511

Pro se, for Plaintiffs S2i and John C. Dodd, III

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